

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA
COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No: 2021 CC 6858
Civil Division
Landlord/Tenant Action

v.

MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF MARLIN J. YODER
AND ALL PARTIES HAVING OR CLAIMING
TO HAVE ANY RIGHT, TITLE, OR INTEREST
IN THE PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN UNAUTHORIZED OCCUPANTS,

Defendants.

PLAINTIFF'S MOTION FOR DEFAULT FINAL JUDGMENT OF POSSESSION

Plaintiff, COLONIAL MANOR MHC HOLDINGS LLC, a Foreign Limited Liability Company, moves for entry of a Default Final Judgment of Possession of Plaintiff's complaint in this matter against Defendants Marlin J. Yoder, and If Deceased, All Unknown Parties, Beneficiaries, Heirs, Successors And Assigns of Marlin J. Yoder and All Parties Having or Claiming to Have Any Right, Title, or Interest in the Property Herein Described; and All Unknown/Unauthorized Occupants, and as grounds therefore states:

1. This cause for eviction was filed on September 10, 2021, based upon Defendant's nonpayment of rent.
2. Service was effected upon Defendants on September 27, 2021.
3. Defendants failed to deposit into the Court registry the required rent pursuant to Sections 723.063(2) and 723.061(1)(a), Florida Statutes, or file any pleadings or papers in this action as required by the Florida Rules of Civil Procedure.

4. A MOTION FOR DEFAULT (Eviction) has been forwarded to the Clerk of Court against Defendants.

5. Plaintiff is entitled to judgment for possession of the Property (as defined in the Complaint) against Defendants, and is entitled to the issuance of a Writ of Possession placing Plaintiff in possession of the Property.

WHEREFORE, Plaintiff respectfully requests that this Court enter a default final judgment of possession awarding possession of the Property to Plaintiff and ordering the issuance of a Writ of Possession directing the Manatee County Sheriff to remove said Defendants, any personal property, and all persons claiming by, through, or under Defendants from the Property without further notice or hearing.

Respectfully submitted,

/s/ Charles Lovings
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Attorneys for Plaintiff

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by U.S. Mail to the following persons on this 1st day of December 2021:

Marlin J. Yoder,
and If Deceased, All Unknown
Parties, Beneficiaries, Heirs,

Successors And Assigns of Bernice
Theresa Langford and All Parties
Having or Claiming to Have Any
Right, Title, or Interest in the
Property Herein Described
900 9th Avenue, E.
Lot 168
Palmetto, Florida 34221

All Unknown/Unauthorized Occupants
900 9th Avenue, E.
Lot 168
Palmetto, Florida 34221

/s/ Charles Lovings
ATTORNEY